NATIONAL COMPANY LAW TRIBUNAL
NEW DELHI BENCH (COURT- II)

C.A.(CAA)126/ND/2020

IN THE MATTER OF SCHEME OF AMALGAMATION :

BETWEEN

Dhanprayog Vanijya Private Limited
...Applicant No.1/Transferor Company

AND

Ganpati Film Producers Private Limited
...Applicant No.2/Transferor Company

AND

Sahayta Financial Consultancy Services India Private Limited
...Applicant No.3/Transferor Company

AND

SDD Estates Private Limited
...Applicant No. 4/ Transferor Company

AND

Classic Eatables Product Private Limited
...Applicant No. 5/ Transferor Company

AND

Apeksha Properties Private Limited
...Applicant No. 6/ Transferor Company

AND

Virat Agencies Private Limited
...Applicant No. 7/ Transferor Company

AND

Vaishno Tradelink Private Limited
...Applicant No.8/ Transferor Company

AND

Topend Realty Private Limited

...Applicant No. 9/ Transferor Company

WITH

Info Sky Technologies Private Limited

...Applicant NO. 10/ Transferee Company

AND

THEIR RESPECTIVE SHAREHOLDERS AND CREDITORS

Order Delivered on : 18.01.2021

Section: 230 to 232 of the Companies Act, 2013

CORAM

SH. ABNI RANJAN KUMAR SINHA, HON'BLE MEMBER (JUDICIAL)

SH. L.N. GUPTA, HON'BLE MEMBER (TECHNICAL)

PRESENT

For Applicants : Ms. Richa Sharma, Advocate

ORDER

PER SHRI L.N. GUPTA, MEMBER (T)

This Company Application No. C.A.(CAA)73/ND/ /2020 has been jointly preferred by all the Transferor and Transferee Companies (hereinafter collectively called as **'the Applicant Companies'**) under Sections 230 to 232 of the Companies Act, 2013. That the Registered offices of all the Applicant Companies are in Delhi and therefore, the

jurisdiction lies with this Bench. The prayer made is to dispense with convening and holding the meeting of Shareholders and Creditors in relation to the Transferor and Transferee Companies.

2. That Dhanprayog Vanijya Private Limited (hereinafter referred as the "Transferor Company No.1") having CIN no. U51101DL2010 PTC359721 is a private limited company incorporated under the Companies Act, 1956, on 26.04.2010. The registered office of the Transferor Company no.1 is situated at House No. 15, Block-B, New Gupta Colony, New Delhi-110009

3. That Ganpati Film Producers Private Limited (hereinafter referred as the "Transferor Company No.2") having CIN no. U99999DL2001 PTC 262487 is a company incorporated under the Companies Act 1956, on 09.05.2001. The registered office of the Transferor Company No.3 is situated at 15, Second Floor, Rajasthani Udyog Nagar Azadpur, Delhi-110033.

4. That Sahayta Financial Consultancy Services India Private Limited (hereinafter referred as the "Transferor Company No.3") having CIN no. U74140DL2003PTC359487 is a company incorporated under the Companies Act, 2013 on 05.11.2003. The registered office of the Transferor Company No.3 is situated at House No. 15, Block-B, New Gupta Colony, New Delhi- 110009.

5. That SDD Estates Private Limited (hereinafter referred as the "Transferor Company No.4") having CIN no. U74899DL1990PTC039518 is a company incorporated under the Companies Act, 2013 on 15.03.1990. The registered office of the Transferor Company No.4 is situated at 15, Rajasthani Udyog Nagar, New Delhi- 110033.

6. That Classic Eatables Product Private Limited (hereinafter referred as the "Transferor Company No.5") having CIN no. U15400DL1993PTC264056 is a company incorporated under the Companies Act, 2013 on 02.08.1993. The registered office of the Transferor Company No.5 is situated at 15, Second Floor, Rajasthani Udyog Nagar, Azadpur, Delhi- 110033.

7. That Apeksha Properties Private Limited (hereinafter referred as the "Transferor Company No.6") having CIN no. U74899DL1991 PTC042791 is a company incorporated under the Companies Act, 2013 on 21.01.1991. The registered office of the Transferor Company No.6 is situated at 15, Rajasthani Udyog Nagar, New Delhi-110033.

8. That Virat Agencies Private Limited (hereinafter referred as the "Transferor Company No.7") having CIN no. U74899DL1987PTC029249 is a company incorporated under the Companies Act, 2013 on 18.09.1987. The registered office of the Transferor Company No.7 is situated at 15, Rajasthani Udyog Nagar, New Delhi- 110033.

9. That Vaishno Tradelink Private Limited (hereinafter referred as the "Transferor Company No.8") having CIN no. U51109DL1995 PTC166022 is a company incorporated under the Companies Act, 2013 on 27.11.1995. The registered office of the Transferor Company No.8 is situated at 15, Rajasthani Udyog Nagar, New Delhi- 110033.

10. That Topend Realty Private Limited (hereinafter referred as the "Transferor Company No.9") having CIN no. U51900DL1985PTC223962 is a company incorporated under the Companies Act, 2013 on 14.02.1985. The registered office of the Transferor Company No.9 is situated at 15, Second Floor, Rajasthani Udyog Nagar, Azadpur, Delhi-110033.

11. That Info Sky Technologies Private Limited (hereinafter referred as the "Transferee Company") having CIN no. U722200DL2010 PTC359365 is a company incorporated under the Companies Act, 2013 on 16.04.2010. The registered office of the Transferee Company is situated at House No. 15, Block-B, New Gupta Colony, New Delhi-110009.

12. It is submitted that the Board of Directors of the Applicant Companies vide separate meetings held on 28.09.2020 had unanimously approved the proposed Scheme of Amalgamation (hereinafter called **'the Scheme'**).

13. That the Applicant Companies have submitted affidavits under Section 230(2)(a) of Companies Act 2013, that they are not under any prosecution/ investigation/inquiry under Companies Act 2013.

14. That the Applicant Companies have also placed on record the Certificate from the Statutory Auditors conforming that their Accounting standards are in conformity with the provision of Section 133 of the Companies Act 2013.

15. That the Applicant Companies have filed their respective Memorandum of Association (MoA) and Articles of Association (AoA). The Applicant Companies have also filed their latest Balance Sheets as on 31.03.2019.

16. That the position regarding the Applicant Company-wise no. of Shareholders and Creditors and their Consent through Affidavits is summarised below :

Company	No. of Share holders	Percentage of Shareholders given Consent	No. of Unsecured Creditors	Percentage of Unsecured Creditors given Consent (in terms of value)
Dhanprayog Vanijya Private Limited Applicant No.1 Company/ Transferor Company	2	100%	1	100%
Ganpati Film Producers Private Limited Applicant No.2/ Transferor Company	3	100%	3	100%
Sahayta Financial Consultancy Services India Private Limited Applicant No. 3/ Transferor Company	4	100%	0	99.97

SDD Estates Private Limited Applicant No.4 Company/ Transferor	2	100%	2	100%
Classic Eatables Product Private Limited Applicant No.5 Company/ Transferor	5	100%	0	N/A
Apeksha Properties Private Limited Applicant No.6 Company/ Transferor	2	100%	1	100%
Virat Agencies Private Limited Applicant No.7 Company/ Transferor	2	100%	2	100%
Vaishno Tradelink Private Limited Applicant No.8 Company/ Transferor	2	100%	1	100%
Topend Realty Private Limited Applicant No.9 Company/ Transferor	4	100%	2	100%
Info Sky Technologies Private Limited Applicant No.10 Company/ Transferee	2	100%	2	100%

17. That all the Shareholders of the Applicant Companies have given 'no objection' to the Scheme on respective affidavits. Therefore, the requirement of convening the Meetings of Shareholders in respect of all the Applicant Companies is dispensed with.

18. That more than 90% in value of the unsecured creditors in Applicant Companies have given 'no objection' to the Scheme on respective affidavits. Therefore, the requirement of convening the Meetings of Unsecured Creditors in respect of all the other Applicant Companies is dispensed with. Further, there are no unsecured creditors in Applicant Company no.5. Therefore, the requirement of convening their meeting does not arise.

19. Since there are no Secured Creditors in any of the Applicants Companies, the need of convening their meetings does not arise.

20. **The Company Application is allowed** in the aforesaid terms.

Sd/-

(L. N. GUPTA)
MEMBER (T)

Sd/-

(ABNI RANJAN KUMAR SINHA)
MEMBER (J)